



HOMEOWNERS ASSOCIATION
P. O. BOX 92
BERTHOUD, CO 80513



DB

April 1, 1986

Mr. Dave Berry
State Division of
Mine Land Reclamation
1313 Sherman
Room 423
Denver, CO 80203

RECEIVED

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MINED LAND
RECLAMATION DIVISION

Dear Mr. Berry:

Per our telephone conversation in February regarding the blasting at a quarry in Larimer County owned by Southwestern Portland Cement, enclosed is a copy of the letter sent to the Company by attorney William Love on our behalf.

We have received information that the operations at the mining location may be winding down; however, we have received no direct response from Southwestern Portland Cement.

Therefore, we would greatly appreciate your looking into the matter for us as to whether there are restrictions concerning the blasting which they have been doing. Although drywall and foundation cracking of a severe nature has occurred in many homes, it is apparent that most of the Homeowners would simply like to see that other alternatives are used which will not shake the homes as we have experienced consistently during the past years. It does not seem to be their intention to place liability at this time.

The operations in question are located in Larimer County, Colorado, west of County Road 23E on Road 4 between Longmont and Loveland.

If you have any questions or require additional information, please do not hesitate to contact me at 1-532-2843. Again, your assistance is appreciated and we look forward to hearing from you once the investigation is completed.

Sincerely,

Beth Pfannenstiel
President
Berthoud Estates Homeowners Association

Enclosure

WELLS, LOVE & SCOBY

Attorneys at Law

225 CANYON BOULEVARD
BOULDER, COLORADO 80302

303/449-4400

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MARY B. HINRICH
KENNETH D. ROBINSON
CRAIG N. BLOCKWICK

February 20, 1986

Southwest Portland Cement Company
P.O. Box 529
Lyons, CO 80540

Attn: Ray Cooks, Manager

Gentlemen:

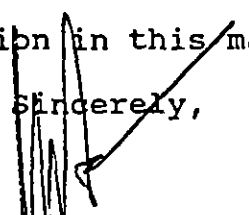
This office represents the Berthoud Estates Homeowners Association whose members are the owners of the property in the Berthoud Estates Subdivision. This property is located relatively close to the area where you are conducting your blasting operations. The owners feel that this blasting is causing damage to the homes within the subdivision.

As you are aware blasting is a hazardous activity and is probably an area of "strict liability" on your part. In the event any damage occurs or has occurred to my clients' property which can be traced back to the blasting operations you will be held strictly responsible for said damage.

Any assistance you can give conducting your blasting in a manner which causes no damage to my clients' property is greatly appreciated.

Thank you for your consideration in this matter.

Sincerely,


William A. Love
of WELLS, LOVE & SCOBY

bb Bath Pfannenstiel
c/ ~~Betty Pfannenstiel~~

Berthoud Estates Homeowners Assn.

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